

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

RESPONDENT

**STATUS REPORT SUBMITTED BY RESPONDENT, THE PORT AUTHORITY OF
NEW YORK AND NEW JERSEY**

Pursuant to Your Honor's September 19, 2017 Scheduling Order, Respondent, The Port Authority of New York and New Jersey (the "Port Authority"), submits this status report for the month of December 2017:

1. Written discovery demands were exchanged in conformance with the Scheduling Order.
2. The Port Authority served its responses to Complainant, Port Elizabeth Terminal & Warehouse's ("PETW"), request for admissions on October 31, 2017.
3. PETW served its responses to the Port Authority's written discovery demands on November 1, 2017.
4. The Port Authority served its responses to PETW's written discovery demands on November 2, 2017.
5. PETW identified its expert and exchanged its expert report on November 16, 2017, in conformity with the Scheduling Order.

6. The Port Authority identified its expert and exchanged its expert report on December 19, 2017, in conformity with the Scheduling Order.

7. The current discovery end date for this matter is on January 16, 2018.

8. However, the parties need additional time to complete discovery.

9. Specifically, the parties need additional time in order to take the depositions of numerous party and non-party witnesses and experts.

10. Pursuant to 46 CFR § 502.141(l), the parties will be submitting a stipulation to extend the discovery end date for Your Honor's approval.

Dated: January 2, 2018

PORT AUTHORITY LAW DEPARTMENT



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and New Jersey*